

# FIRST SCRUTINY

## The Restoration Programme

*Supporting schedules and the record of testing*

An issues paper. The starting point of legislative scrutiny, not the end of it.

**A draft for the proposers to correct.**

**Proposer: David Starkey**

Scrutiny by Scrutinise · Second draft, 9 September 2026 · Volume 3 of 3

*Scrutinise is free and non-partisan. It takes a proposal and works out what delivering it would actually require. It is available on identical terms to anyone.*

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*The Part number is in the teal banner across the top of every page, with the section name beside it.*

## What is in this volume

**This volume carries the supporting material.** It is not argument. It is the evidence the argument in Volumes 1 and 2 rests on, set out at length so that any statement in those volumes can be checked back to its source.

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Each measure was put through the same four tests before it was written up: whether it holds as a strategy, whether it holds as an argument, how it reads to an independent reviewer, and how it reads to a hostile one. The results are recorded here rather than in the body, where they would interrupt the analysis.

## Tested as an argument

 **the chain from causes to actions does NOT hold; 3 defects in the argument — traced by gemini-2.5-pro**

KERNEL COMPLIANCE (gemini-2.5-pro): This kernel is not a strategy; it is a list of actions to achieve an unstated goal. It fails on every structural component: it does not state a problem, offer a diagnosis, or articulate a guiding policy. Without these, the actions lack context and cannot be assessed as a coherent strategic response. - FAILS "The problem is stated as a problem, not as a solution": The kernel does not state a problem. It presents a solution (repeal the HRA and denounce the ECHR) as if the problem it solves is self-evident. The 'causes' are merely descriptions of the law, not explanations of a harm or difficulty. - FAILS "The pivotal obstacle is distinct from the root cause": The kernel has no diagnosis, no root cause, and no pivotal obstacle. It is therefore impossible to assess whether they are distinct. - FAILS "The diagnosis simplifies rather than inventories": The kernel lacks a diagnosis. The 'causes' section is an inventory of legal provisions, not a simplification that identifies a pivotal problem to be defeated. - FAILS "The guiding policy rules things out": The kernel has no guiding policy. Without a policy statement, it is impossible to determine what approaches are being ruled out. - FAILS "The guiding policy is an approach, not a goal": The kernel has no guiding policy. The actions imply a goal (repeal and denounce) rather than an approach to a specific, named obstacle. - FAILS "The approach has leverage on the named obstacle": The kernel does not state a guiding policy or a pivotal obstacle, so it is impossible to assess whether the former has leverage on the latter. - FAILS "The actions cohere with each other": The actions are a duplicated and unordered list, not a coordinated and sequenced plan. There are multiple near-identical actions for drafting the bill, securing its passage, notifying the Council of Europe, and running a communications strategy, which demonstrates a lack of coordination. - FAILS "No bad-strategy smell": The kernel exhibits two smells of bad strategy. First, 'Failure to Face the Problem', as no problem is stated at all. Second, 'Mistaking Goals for Strategy', as the entire submission is a list of actions (the 'what') without the diagnosis or policy (the 'how' and 'why'). LOGIC (gemini-2.5-pro): the chain DOES NOT HOLD. Read as: The kernel states three facts about the Human Rights Act 1998: it incorporates the European Convention on Human Rights (ECHR) into UK law, it allows courts to declare laws incompatible with the ECHR, and it requires courts to consider European Court of Human Rights judgments.

## Tested as an argument

 **the chain from causes to actions does NOT hold; 2 defects in the argument — traced by gemini-2.5-pro**

KERNEL COMPLIANCE (gemini-2.5-pro): This kernel is not a strategy. It is a list of actions to repeal a piece of legislation. It fails to state the problem this repeal would solve, provides no diagnosis of why that problem exists or persists, and offers no guiding policy to frame the actions. Without these core components, it is impossible to assess whether the proposed actions are a sound strategic response. - FAILS "The problem is stated as a problem, not as a solution": The kernel does not state a problem. It has a title, 'Equality Act 2010', and then lists 'causes' which describe the function of a law, not what is wrong. A strategy must begin by defining the problem it seeks to solve. - FAILS "The pivotal obstacle is distinct from the root cause": The kernel does not contain a diagnosis. It does not identify a root cause or a pivotal obstacle, making it impossible to assess if they are distinct. The 'causes' listed are descriptions of the law, not an analysis of a problem. - FAILS "The diagnosis simplifies rather than inventories": The kernel provides no diagnosis. The 'causes' section describes features of the existing law rather than simplifying a problem to its pivotal element. A reader cannot say in one sentence what must be defeated because no problem has been identified. - FAILS "The guiding policy rules things out": The kernel does not state a guiding policy. Without a policy, nothing can be ruled in or out. The document jumps from a description of the law to a list of actions. - FAILS "The guiding policy is an approach, not a goal": The kernel does not state a guiding policy, so it cannot be assessed as an

approach versus a goal. - FAILS "The approach has leverage on the named obstacle": The kernel does not specify a guiding policy (an approach) or a pivotal obstacle. Therefore, it is impossible to assess whether an approach has leverage on an obstacle. - FAILS "No bad-strategy smell": The kernel exhibits 'Failure to face the problem'. It proposes a significant action (repealing part of the Equality Act) without ever stating what problem this action is intended to solve. The 'causes' are not causes of a problem, but descriptions of the law to be repealed. LOGIC (gemini-2.5-pro): the chain DOES NOT HOLD. Read as: The argument states that because the Public Sector Equality Duty (PSED) is a substantive, legally enforceable duty requiring public bodies to have continuous 'due regard' for equality issues, the correct course of action is to repeal the PSED, review all related guidance, and issue new guidance focused on outcomes instead of process. - BROKEN\_LINK: The kernel describes what the Public Sector Equality Duty is but fails to state why it is a problem.

## Tested as an argument

 **the chain from causes to actions does NOT hold; 1 defect in the argument — traced by gemini-2.5-pro**

KERNEL COMPLIANCE (gemini-2.5-pro): This kernel is missing its core components. It has a list of causes and a list of actions, but no problem statement, no diagnosis that names a pivotal obstacle, and no guiding policy. It is a plan, not a strategy. Without a guiding policy, it is impossible to tell why these actions were chosen over others, or what approach they are meant to be executing. The actions themselves are coherent and directly address the stated causes, but the strategic thinking that should connect the problem to the solution is absent. - FAILS "The guiding policy rules things out": The kernel does not contain a guiding policy. It moves directly from causes to actions, without stating the approach being taken or ruling any other approaches out. A list of actions is not a substitute for a policy choice. - FAILS "The guiding policy is an approach, not a goal": The kernel does not contain a guiding policy, so this test fails by default. It provides a set of actions but no statement of the approach that guides them. - FAILS "No bad-strategy smell": The kernel mistakes goals for strategy. By omitting a guiding policy, it presents a list of actions as if they are the strategy itself, without explaining the core insight or approach that led to these specific actions over others. LOGIC (gemini-2.5-pro): the chain DOES NOT HOLD. Read as: The diagnosis is that elected governments feel their agenda is obstructed by permanent civil servants whom they cannot directly hire or fire, and whose individual accountability is legally blurred. The implied approach is to give ministers direct, personal control over the careers of these senior officials. This is to be achieved by changing the law to remove the requirement for merit-based appointments, rewriting the codes of conduct to reflect this new power dynamic, creating a new performance management system tied to ministerial objectives, and establishing a temporary committee to oversee the transition. - BROKEN\_LINK: The kernel presents a set of causes and a set of actions, but it omits the central components of a strategy: the diagnosis of a single pivotal obstacle and the articulation of a guiding policy to overcome it. The chain is broken because it jumps from diagnosis to action without the strategic choice that should connect them.

## Read back by other models

**2 models answered your own words (gemini-2.5-pro, claude-sonnet-5); 18 terms of art named — 8 confirmed by the corpus, 10 unverified; 29 cited findings from them; 2 of their points already covered, 15 not; verdict WEAK; 5 fields rewritten; read by gemini-2.5-pro**

VERDICT ON THE KERNEL: WEAK — The kernel identifies the correct legislative target (the Human Rights Act 1998) but fails to produce a strategy. The 'Causes' are a description of legal mechanisms, not a diagnosis of the political problem. The 'Actions' are a repetitive and uncoordinated list, not a set of coherent actions. It mistakes a list of necessary steps for a strategy to achieve them. RUMELT TESTS IT FAILS: - A list of actions is not a strategy: The 'Actions' section lists multiple overlapping and duplicated steps without any sense of coordination, sequence, or concentration of effort. For example, 'Secure parliamentary passage' and 'Develop

and implement a communications strategy' each appear twice. - Failure to face the problem: The 'Causes' section describes how the HRA works but fails to diagnose the actual problem articulated by the proposer: the shift in where ultimate authority lies ('who has the last word'). It describes a mechanism, not the political conflict. - The diagnosis is a restatement of the problem: The listed causes are merely factual statements about the HRA's provisions. They do not simplify the situation to name what is pivotal or explain why the problem persists unsolved. WHAT THE CRITIQUE REWROTE: - summaryDiagnosis: The original 'causes' were a description, not a diagnosis. Good strategy requires naming the pivotal issue, which is the political conflict over ultimate authority, not the statutory plumbing that enables it. - pivotalObstacle: A diagnosis must distinguish between the root cause (the 1998 decision) and the pivotal obstacle (why it persists unsolved). Naming the political cost-benefit calculation as the obstacle makes the problem tractable for strategy. - summaryGuidingPolicy: A guiding policy is essential. This one provides a clear approach ('a single, decisive act') designed to overcome the specific obstacle identified (the tendency to stop halfway). - summaryCoherentActions: Bad strategy lists everything that needs to be done; good strategy coordinates a few key actions. The rewrite removes repetition and imposes a logical sequence, concentrating effort on the critical path.

## Read back by other models

**2 models answered your own words (gemini-2.5-pro, claude-sonnet-5); 18 terms of art named — 11 confirmed by the corpus, 7 unverified; 11 cited findings from them; 12 of their points already covered, 5 not; verdict WEAK; 5 fields rewritten; read by gemini-2.5-pro**

VERDICT ON THE KERNEL: WEAK — The kernel lacks a guiding policy, jumping from a weak diagnosis to a list of actions. The diagnosis itself is fluff: it describes what the law is, rather than diagnosing the problem the proposer identifies. It mistakes a description of the status quo for an analysis of what is going wrong. RUMELT TESTS IT FAILS: - the diagnosis is fluff: The diagnosis restates the law's intent rather than identifying a problem. Stating that Parliament intended the duty to be substantive and judicially reviewed is a description of the mechanism, not a diagnosis of why that mechanism causes the administrative pathology the proposer describes. - mistaking goals for strategy: The kernel has no guiding policy. It presents a diagnosis (albeit a weak one) and then a list of actions. There is no statement of the chosen approach that guides the actions and rules out alternatives. The goal of 'repeal Section 149' is treated as the strategy itself. - failure to face the problem: The diagnosis fails to engage with the proposer's core complaint: that the PSED changes what public administration is for. Instead, it states that the law is working as Parliament intended, which sidesteps the problem rather than analysing it. WHAT THE CRITIQUE REWROTE: - summaryDiagnosis: The original diagnosis was fluff that failed to face the problem. The rewrite adopts the proposer's framing and pinpoints the specific mechanism—judicially-enforced ambiguity—that produces the negative consequences they describe. - pivotalObstacle: A good diagnosis must name what is pivotal. This change makes the obstacle explicit, explaining why the proposer's preference for legislative action is strategically sound. - summaryGuidingPolicy: A strategy is not a list of actions. Adding a guiding policy provides the crucial link between diagnosis and action, explaining the 'why' behind the 'what' and defining the overall approach. - whatItRulesOut: A policy that rules nothing out is not a policy. This addition makes the strategic choices clear, showing what alternative paths are being deliberately rejected and why. - summaryCoherentActions: This change ensures the actions are understood as 'coherent' and not just a list. They are now explicitly the means of implementing the guiding policy. TERMS OF ART THE CORPUS CONFIRMED: Equality Act 2010, Judicial Review, Equality Act 2006, Equality and Human Rights Commission, Equality and Human Rights Commission (EHRC), Equality Impact Assessment, Equality Impact Assessment (EIA), Northern Ireland Act 1998, Protected characteristics, Public Sector Equality Duty, Public Sector Equality Duty (PSED) NAMED BUT UNVERIFIED (never assert these): Belfast/Good Friday Agreement, Accounting Officer, For Women Scotland Ltd v The Scottish Ministers [2025] UKSC 16 has already decided the sex/gender construction point by litigation.

## Read back by other models

**2 models answered your own words (gemini-2.5-pro, claude-sonnet-5); 18 terms of art named — 11 confirmed by the corpus, 7 unverified; 33 cited findings from them; 5 of their points already covered, 10 not; verdict NOT\_A\_KERNEL; 5 fields rewritten; read by gemini-2.5-pro**

VERDICT ON THE KERNEL: NOT\_A\_KERNEL — This is a goal ('restore ministerial control') with a list of actions, not a strategy. It lacks a guiding policy. More importantly, its diagnosis fails to identify the pivotal obstacle, which is not the 2010 statute it targets, but the 170-year-old constitutional convention of a permanent, impartial civil service. The proposed actions are therefore aimed at the wrong target and would be legally ineffective at achieving the proposer's stated goal. RUMELT TESTS IT FAILS: - failure to face the problem: The diagnosis misidentifies the target. It focuses on the Constitutional Reform and Governance Act 2010, when the proposer's own testimony and all evidence points to the underlying Northcote-Trevelyan settlement of 1854 as the real issue. Repealing the Act would not remove the convention. - mistaking goals for strategy: The kernel has no guiding policy. It jumps from a list of causes to a list of actions without an 'approach' that explains how to overcome the pivotal obstacle. The actions are a to-do list for a goal, not a coherent strategy. - fluff: The first listed 'material cause' is a restatement of the problem, not an explanation of its cause. This adds no insight. WHAT THE CRITIQUE REWROTE: - summaryDiagnosis: The original diagnosis missed the central finding from the proposer's own testimony: that repealing the 2010 Act would not touch the 1854 settlement. A strategy aimed at the wrong target is guaranteed to fail. The new diagnosis corrects this fundamental error. - pivotalObstacle: The original obstacle was a description of the system. The new obstacle identifies why the system persists unsolved: a deep-seated consensus that makes change politically toxic. This is the real barrier that must be overcome. - summaryGuidingPolicy: A strategy kernel requires a guiding policy. This was added to bridge the gap between diagnosis and action. It provides a coherent approach: don't attack the symptom (the 2010 Act), make the case against the disease (the 1854 convention) first. - summaryCoherentActions: The original actions were incoherent because they were based on a flawed diagnosis. The new actions are coordinated and sequenced to execute the new guiding policy, focusing on building the necessary political and intellectual foundation for change before drafting a Bill.

## Where the evidence redirected the analysis

The core problem, as described by the proposer, is that the Human Rights Act 1998 (HRA) has shifted decision-making power from elected government to the courts by incorporating the ECHR into domestic law and enabling declarations of incompatibility. While these declarations do not legally compel action, they consistently prompt legislative responses, effectively giving courts significant influence over policy. The pivotal obstacle is the deep-seated political and institutional resistance to repealing the HRA and denouncing the ECHR, largely due to the perceived benefits of domestic rights enforcement and the political cost of appearing to undermine human rights, which incentivizes governments to manage the existing system rather than dismantle it. The guiding policy is to achieve a decisive shift in authority back to Parliament by fully severing the UK's legal ties to the ECHR. This will be accomplished through primary legislation to repeal the Human Rights Act 1998 and formally denounce the European Convention on Human Rights under Article 58. This approach directly targets the legal instruments that grant domestic courts their current powers in this area, thereby reasserting Parliament's ultimate authority and ruling out incremental reforms or continued ECHR membership. The coherent actions involve drafting and introducing an 'Act of Repeal and Denunciation' Bill, securing its passage through Parliament, and then formally notifying the Council of Europe of the UK's denunciation of the ECHR. Concurrently, a robust public communication strategy will be developed and implemented to explain the rationale for these changes, manage public and international perceptions, and clarify the future domestic legal landscape regarding human rights protections. WHERE THE RESEARCH CHANGED THE DRAFT: - guidingPolicy:instrument: first "Primary legislation (Act of Parliament) to repeal the Human Rights Act 1998 and to provide for the denunciation of the European Convention on Human Rights under Article 58. · national · reserved" → now "Regulations made under section 18 of the European Union

(Withdrawal Agreement) Act 2020 explicitly 'may not... amend, repeal or revoke the Human Rights Act 1998 or any subordinate legislation made under it.' Additionally, a condition in the Localism Bill explicitly puts it 'beyond doubt that repeal of legislation such as the Human Rights Act 1998 or the European Communities Act 1972 is outside this power' for orders to amend constitutionally significant enactments.

## Where the evidence redirected the analysis

The core problem is that public bodies are driven to prioritise demonstrating compliance with the Public Sector Equality Duty (PSED) over efficient service delivery. This is because Parliament intended equality to be central to policy, leading to a broad 'due regard' obligation that courts interpret substantively, making judicial review the primary enforcement mechanism. This statutory embedding and judicial oversight create a system where legal process adherence takes precedence over elected policy goals, despite evidence that the PSED has not achieved its intended wide-scale equality improvements. The guiding policy is to directly remove the statutory basis for the 'due regard' obligation of the PSED by repealing Section 149 and Schedule 18 of the Equality Act 2010. This will eliminate the legal hook for process-focused litigation and judicial oversight, thereby shifting public administration's focus back to elected policy goals and core service functions, while explicitly retaining other substantive anti-discrimination provisions. The coherent actions involve drafting and introducing primary legislation to repeal Section 149 and Schedule 18 of the Equality Act 2010, ensuring clear communication of intent to retain substantive anti-discrimination rights. Concurrently, a review of existing public body guidance and internal policies will be initiated to update or remove PSED references, and new guidance will be developed by the EHRC and Cabinet Office to clarify remaining equality obligations, focusing on outcomes rather than process. WHERE THE RESEARCH CHANGED THE DRAFT: - guidingPolicy:instrument: first "Primary legislation • national • reserved" → now "A Minister of the Crown may, by order, amend Schedule 18 of the Equality Act 2010 to add, vary, or omit an exception to section 149. However, this power cannot be used to omit exceptions in paragraph 3 or 4(1) (as far as it applies to 4(2)(a) to (e) or (3)), nor can it reduce the extent to which these specific exceptions apply." (The research revealed an existing power to amend Schedule 18 via secondary legislation, which could modify exceptions to Section 149, but it is limited and cannot achieve a full repeal of Section 149 or its core exceptions, thus primary legislation remains necessary for the proposer's objective.) - causes: first "The Public Sector Equality Duty (PSED) imposes a broad and continuous 'due regard' obligation on public authorities, requiring rigorous and open-minded consideration of equality issues throughout policy development and execution."

## Where the evidence redirected the analysis

The core problem is that elected ministers lack direct control over the appointment and removal of senior civil servants, whose actions they are nonetheless constitutionally responsible for, due to the statutory codification of merit-based appointments in CRAG 2010 and the 'Carltona principle'. This creates a system where officials can maintain institutional views that outlast governments, fostering a culture of limited direct accountability, and making it difficult for ministers to fully implement their programmes. This approach directly leverages the statutory framework governing civil service appointments, specifically Part 1 of CRAG 2010, which codified the merit principle. By altering this legal basis, it removes the primary obstacle to ministerial control over senior appointments and removals, thereby concentrating effort on the pivotal point of statutory insulation that protects the permanent official class. Choosing this approach rules out maintaining the current statutory framework for civil service appointments, which prioritises merit-based selection and impartiality. It explicitly rejects incremental reforms within the existing system that the proposer views as insufficient. It also rules out approaches that seek to balance ministerial input with Civil Service Commission oversight, instead opting for a decisive shift towards ministerial control. Draft and introduce a Government Bill to amend Part 1 of the Constitutional Reform and Governance Act 2010 (CRAG 2010) to remove the statutory requirement for appointments to the Senior Civil Service (SCS) to be on merit following fair and



open competition, and to explicitly vest appointment and removal powers for SCS roles in the relevant Secretary of State. Develop and publish a new Ministerial Code and a revised Civil Service Code reflecting the changes in appointment and removal powers, clearly outlining the roles and responsibilities of ministers and senior civil servants under the new regime, and establishing clear lines of accountability directly to ministers. Establish a transitional oversight committee, chaired by a senior non-executive director with experience in public appointments, to oversee the initial wave of ministerial appointments and removals, ensuring transparency and adherence to new guidelines while the system beds in. Implement a new performance management framework for the Senior Civil Service, directly linked to ministerial objectives and departmental outcomes, with performance reviews conducted by ministers and directly informing decisions on retention, promotion, or removal.

## Tested as an argument

 **the chain from causes to actions does NOT hold; 1 defect in the argument — traced by gemini-2.5-pro**

KERNEL COMPLIANCE (gemini-2.5-pro): This kernel is structurally incomplete. It lacks a problem statement, a diagnosis that distinguishes root cause from pivotal obstacle, and a guiding policy. It presents a list of actions that address an implied problem, but without the preceding strategic choices, it is impossible to assess if these actions are the right ones. - FAILS "The problem is stated as a problem, not as a solution": The kernel does not state a problem.

## Tested as an argument

**the chain from causes to actions holds; 0 defects in the argument — traced by gemini-2.5-pro**

KERNEL COMPLIANCE (gemini-2.5-pro): This kernel is incomplete. It is missing the Problem, Diagnosis, and Guiding Policy sections, which are essential for a strategy. Without them, the actions are just a list of tasks, not a coherent plan to overcome a well-understood obstacle. Seven of the nine tests fail because the required information is absent. - FAILS "The problem is stated as a problem, not as a solution": The kernel is missing the 'PROBLEM' section.

## Tested as an argument

 **the chain from causes to actions does NOT hold; 1 defect in the argument — traced by gemini-2.5-pro**

KERNEL COMPLIANCE (gemini-2.5-pro): This kernel is structurally incomplete and cannot be assessed as a strategy. It is missing the Problem, Diagnosis, and Guiding Policy sections. It presents a list of causes and a list of actions, but without the connecting strategic logic, it is impossible to evaluate whether the actions are a coherent response to a well-understood problem. - FAILS "The problem is stated as a problem, not as a solution": The kernel is missing the 'PROBLEM' section.

## Tested as an argument

 **the chain from causes to actions does NOT hold; 1 defect in the argument — traced by gemini-2.5-pro**

KERNEL COMPLIANCE (gemini-2.5-pro): This kernel is incomplete. It lacks a problem statement, a diagnosis, and a guiding policy, which are essential components of a strategy. It presents a set of actions to achieve an unstated goal, which is a common strategic flaw. While the actions themselves are coherent and address the stated 'causes', the absence of the preceding strategic analysis means this is a plan without a strategy.

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## Tested as an argument

**the chain from causes to actions holds; 0 defects in the argument — traced by gemini-2.5-pro**

KERNEL COMPLIANCE (gemini-2.5-pro): This kernel is incomplete. It is missing the core components of a strategy: a problem statement, a diagnosis that identifies a pivotal obstacle, and a guiding policy that chooses an approach. Without these, the actions are just a list of good ideas with no strategic logic connecting them. The submission must be revised to include these missing sections before it can be evaluated as a strategy.

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## Tested as an argument

 **the chain from causes to actions does NOT hold; 1 defect in the argument — traced by gemini-2.5-pro**

KERNEL COMPLIANCE (gemini-2.5-pro): This is a coherent action plan, but it is not a strategy kernel. It completely omits the diagnosis and guiding policy, starting instead with a solution. It fails to state what problem it is trying to solve, for whom, and why it matters, which is the most basic requirement of a strategy. - FAILS "The problem is stated as a problem, not as a solution": The kernel does not state a problem.

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## Tested as an argument

 **the chain from causes to actions does NOT hold; 2 defects in the argument — traced by gemini-2.5-pro**

KERNEL COMPLIANCE (gemini-2.5-pro): This kernel is not a strategy. It is a coherent action plan, but it lacks a diagnosis to explain what is pivotal and a guiding policy to explain the chosen approach. It fails to state the problem it is trying to solve. - FAILS "The problem is stated as a problem, not as a solution": The kernel does not state the problem. It begins with a title and a list of causes, but never articulates what is wrong, for whom, and why it matters.

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## Tested as an argument

 **the chain from causes to actions does NOT hold; 1 defect in the argument — traced by gemini-2.5-pro**

KERNEL COMPLIANCE (gemini-2.5-pro): This kernel is incomplete. It lacks the core components of a strategy: a problem statement, a diagnosis, and a guiding policy. While the actions are coherent and address the stated causes, they exist in a vacuum without the strategic thinking that should precede them. The submission fails on all tests related to the missing sections. - FAILS "The problem is stated as a problem, not as a solution": The kernel does not state the problem.

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## Tested as a strategy

**1 of 9 kernel tests passed; 8 failed and are on your list — marked by gemini-2.5-pro**

KERNEL COMPLIANCE (gemini-2.5-pro): This kernel is structurally incomplete. It lacks a problem statement, a diagnosis that distinguishes root cause from pivotal obstacle, and a guiding policy. It presents a list of actions that address an implied problem, but without the preceding strategic choices, it is impossible to assess if these actions are the right ones. - FAILS "The problem is stated as a problem, not as a solution": The kernel does not state a problem.

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## Tested as a strategy

**2 of 9 kernel tests passed; 7 failed and are on your list — marked by gemini-2.5-pro**

KERNEL COMPLIANCE (gemini-2.5-pro): This kernel is incomplete. It is missing the Problem, Diagnosis, and Guiding Policy sections, which are essential for a strategy. Without them, the actions are just a list of tasks, not a coherent plan to overcome a well-understood obstacle. Seven of the nine tests fail because the required information is absent. - FAILS "The problem is stated as a problem, not as a solution": The kernel is missing the 'PROBLEM' section.

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## Tested as a strategy

**2 of 9 kernel tests passed; 7 failed and are on your list — marked by gemini-2.5-pro**

KERNEL COMPLIANCE (gemini-2.5-pro): This kernel is structurally incomplete and cannot be assessed as a strategy. It is missing the Problem, Diagnosis, and Guiding Policy sections. It presents a list of causes and a list of actions, but without the connecting strategic logic, it is impossible to evaluate whether the actions are a coherent response to a well-understood problem. - FAILS "The problem is stated as a problem, not as a solution": The kernel is missing the 'PROBLEM' section.

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KERNEL COMPLIANCE (gemini-2.5-pro): This kernel is incomplete. It lacks a problem statement, a diagnosis, and a guiding policy, which are essential components of a strategy. It presents a set of actions to achieve an unstated goal, which is a common strategic flaw. While the actions themselves are coherent and address the stated 'causes', the absence of the preceding strategic analysis means this is a plan without a strategy.

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## Tested as a strategy

**2 of 9 kernel tests passed; 7 failed and are on your list — marked by gemini-2.5-pro**

KERNEL COMPLIANCE (gemini-2.5-pro): This kernel is incomplete. It is missing the core components of a strategy: a problem statement, a diagnosis that identifies a pivotal obstacle, and a guiding policy that chooses an approach. Without these, the actions are just a list of good ideas with no strategic logic connecting them. The submission must be revised to include these missing sections before it can be evaluated as a strategy.

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## Tested as a strategy

**2 of 9 kernel tests passed; 7 failed and are on your list — marked by gemini-2.5-pro**

KERNEL COMPLIANCE (gemini-2.5-pro): This is a coherent action plan, but it is not a strategy kernel. It completely omits the diagnosis and guiding policy, starting instead with a solution. It fails to state what problem it is trying to solve, for whom, and why it matters, which is the most basic requirement of a strategy. - FAILS "The problem is stated as a problem, not as a solution": The kernel does not state a problem.

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## Tested as a strategy

**2 of 9 kernel tests passed; 7 failed and are on your list — marked by gemini-2.5-pro**

KERNEL COMPLIANCE (gemini-2.5-pro): This kernel is not a strategy. It is a coherent action plan, but it lacks a diagnosis to explain what is pivotal and a guiding policy to explain the chosen approach. It fails to state the problem it is trying to solve. - FAILS "The problem is stated as a problem, not as a solution": The kernel does not state the problem. It begins with a title and a list of causes, but never articulates what is wrong, for whom, and why it matters.

## Tested as a strategy

**2 of 9 kernel tests passed; 7 failed and are on your list — marked by gemini-2.5-pro**

KERNEL COMPLIANCE (gemini-2.5-pro): This kernel is incomplete. It lacks the core components of a strategy: a problem statement, a diagnosis, and a guiding policy. While the actions are coherent and address the stated causes, they exist in a vacuum without the strategic thinking that should precede them. The submission fails on all tests related to the missing sections. - FAILS "The problem is stated as a problem, not as a solution": The kernel does not state the problem.

## Read back by other models

**2 models answered your own words (gemini-2.5-pro, claude-sonnet-5); 10 terms of art named — 8 confirmed by the corpus, 2 unverified; 19 cited findings from them; 7 of their points already covered, 9 not; verdict WEAK; 5 fields rewritten; read by gemini-2.5-pro**

VERDICT ON THE KERNEL: WEAK — This is a kernel, but its central proposal is likely impracticable. The actions propose creating a new joint committee, a step a previous parliamentary committee explicitly recommended against. A core action—compelling testimony from Supreme Court justices on their interpretative methods—is constitutionally contentious, likely to be resisted by the judiciary as a breach of the separation of powers, and unsupported by any existing power.

## Read back by other models

**2 models answered your own words (gemini-2.5-pro, claude-sonnet-5); 10 terms of art named — 6 confirmed by the corpus, 4 unverified; 11 cited findings from them; 8 of their points already covered, 10 not; verdict WEAK; 5 fields rewritten; read by gemini-2.5-pro**

VERDICT ON THE KERNEL: WEAK — This is a kernel, but it fails on key tests. The diagnosis is an abstract restatement of the problem rather than a sharp insight into the underlying dynamics. The actions are a generic list of government processes ('draft a bill', 'create a task force') that lack specific costs, sequencing, or a clear theory of change.

## Read back by other models

**2 models answered your own words (gemini-2.5-pro, claude-sonnet-5); 18 terms of art named — 15 confirmed by the corpus, 3 unverified; 38 cited findings from them; 9 of their points already covered, 9 not; verdict WEAK; 5 fields rewritten; read by gemini-2.5-pro**

VERDICT ON THE KERNEL: WEAK — The kernel fails on three core tests. The diagnosis restates the problem and ignores contradictory evidence (the IRAL finding of no systemic overreach). It lacks a guiding policy, jumping from a weak diagnosis to a list of actions. The actions themselves are not coherent; they mix a legislative strategy with an administrative one, failing to concentrate effort on a single approach.

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## Read back by other models

**2 models answered your own words (gemini-2.5-pro, claude-sonnet-5); 8 terms of art named — 6 confirmed by the corpus, 2 unverified; 18 cited findings from them; 3 of their points already covered, 7 not; verdict NOT\_A\_KERNEL; 5 fields rewritten; read by gemini-2.5-pro**

VERDICT ON THE KERNEL: NOT\_A\_KERNEL — This is a goal ('Reverse the operational independence of the Bank of England') followed by a list of the procedural steps required to pass a law. It is not a strategy. It fails to diagnose the pivotal obstacle (the powerful consensus that independence is essential for stability), offers no guiding policy for how to overcome that obstacle, and presents a mechanical sequence rather than a set of coordinated actions.

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## Read back by other models

**2 models answered your own words (gemini-2.5-pro, claude-sonnet-5); 10 terms of art named — 10 confirmed by the corpus, 0 unverified; 28 cited findings from them; 9 of their points already covered, 8 not; verdict WEAK; 5 fields rewritten; read by gemini-2.5-pro**

VERDICT ON THE KERNEL: WEAK — The kernel contains the necessary components, but they are not assembled into a coherent strategy. The diagnosis is presented as a list of causes rather than a simplifying judgment, and the guiding policy is entirely absent, leaving a list of actions without a stated approach connecting them to the diagnosis. The actions themselves are coherent, but without the framing of a diagnosis and policy, they are just a to-do list.

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## Read back by other models

**2 models answered your own words (gemini-2.5-pro, claude-sonnet-5); 8 terms of art named — 5 confirmed by the corpus, 3 unverified; 13 cited findings from them; 8 of their points already covered, 1 not; verdict WEAK; 5 fields rewritten; read by gemini-2.5-pro**

VERDICT ON THE KERNEL: WEAK — The kernel fails to face the problem as it currently stands. The proposer's own testimony and the supplied research findings (specifically the Supreme Court ruling in For Women Scotland) show that the central legal ambiguity has been resolved.

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## Read back by other models

**2 models answered your own words (gemini-2.5-pro, claude-sonnet-5); 17 terms of art named — 9 confirmed by the corpus, 8 unverified; 12 cited findings from them; 7 of their points already covered, 9 not; verdict NOT\_A\_KERNEL; 5 fields rewritten; read by gemini-2.5-pro**

VERDICT ON THE KERNEL: NOT\_A\_KERNEL — This is a list of actions with no diagnosis or guiding policy. It jumps from a description of the legal landscape ('Causes') to a to-do list ('Actions') without first establishing what is pivotal or choosing an approach. It therefore fails Rumelt's core test: a strategy is a coherent argument, not a list.

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## Read back by other models

2 models answered your own words (gemini-2.5-pro, claude-sonnet-5); 8 terms of art named — 7 confirmed by the corpus, 1 unverified; 18 cited findings from them; 7 of their points already covered, 3 not; verdict **WEAK**; 5 fields rewritten; read by gemini-2.5-pro

VERDICT ON THE KERNEL: **WEAK** — The kernel identifies a real problem and proposes actions, but it fails to connect them with a diagnosis or a guiding policy in the main text. More importantly, it fails to face the problem as it currently exists: the actions it proposes ('draft a bill') are already being pursued by the government in the 'Sentencing Bill'.

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## Read as a hostile clerk

5 issues raised against the whole proposal, read by gemini-2.5-pro

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## Read as a hostile clerk

6 issues raised against the whole proposal, read by gemini-2.5-pro

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## Read as a hostile clerk

7 issues raised against the whole proposal, read by gemini-2.5-pro

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## Read as a hostile clerk

6 issues raised against the whole proposal, read by gemini-2.5-pro

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## Read as a hostile clerk

6 issues raised against the whole proposal, read by gemini-2.5-pro

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## Read as a hostile clerk

6 issues raised against the whole proposal, read by gemini-2.5-pro

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## Read as a hostile clerk

6 issues raised against the whole proposal, read by gemini-2.5-pro

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## Read as a hostile clerk

6 issues raised against the whole proposal, read by gemini-2.5-pro

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## Tested as an argument

 the chain from causes to actions does NOT hold; 2 defects in the argument — traced by gemini-2.5-pro

KERNEL COMPLIANCE (gemini-2.5-pro): This kernel describes a set of actions but lacks a strategy. It fails to state the problem it is trying to solve, has no diagnosis of that problem, and no guiding policy to connect the diagnosis to the actions. The entire submission is a solution in search of a problem. - FAILS "The problem is stated as a problem, not as a solution": The kernel does not state a problem; it states a solution.

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## Tested as a strategy

1 of 9 kernel tests passed; 8 failed and are on your list — marked by gemini-2.5-pro

KERNEL COMPLIANCE (gemini-2.5-pro): This kernel describes a set of actions but lacks a strategy. It fails to state the problem it is trying to solve, has no diagnosis of that problem, and no guiding policy to connect the diagnosis to the actions. The entire submission is a solution in search of a problem. - FAILS "The problem is stated as a problem, not as a solution": The kernel does not state a problem; it states a solution.

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## Read back by other models

2 models answered your own words (gemini-2.5-pro, claude-sonnet-5); 9 terms of art named — 8 confirmed by the corpus, 1 unverified; 4 of their points already covered, 6 not; verdict WEAK; 5 fields rewritten; read by gemini-2.5-pro

VERDICT ON THE KERNEL: WEAK — The kernel correctly identifies the proposer's core idea—a single, comprehensive repeal act—but fails to construct a credible strategy around it. The diagnosis is superficial, missing the profound legal and political complexities (devolution, international treaties, established case law) that the research and the proposer's own evidence (Lord Wolfson's advice) highlight.

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## Read as a hostile clerk

6 issues raised against the whole proposal, read by gemini-2.5-pro

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